

III

This case marks our first opportunity to address the § 1983 liability of a state prosecuting officer. The Courts of Appeals, however, have confronted the issue many times and under varying circumstances. Although the precise contours of their holdings have been unclear at times, at bottom they are virtually unanimous that a prosecutor enjoys absolute immunity from § 1983 suits for damages when he acts within the scope of his prosecutorial duties.¹⁶ These courts sometimes have described the prosecutor's immunity as a form of "quasi-judicial" immunity and referred to it as derivative of the immunity of judges recognized in *Pierson v. Ray, supra*.¹⁷ Petitioner focuses upon the "quasi-judicial" characterization, and contends that it illustrates a fundamental illogic in according absolute immunity to a prosecutor. He argues that the prosecutor, as a member of the executive branch, cannot claim the immunity reserved for the judiciary, but only a qualified immunity

immunity accorded legislators by the Federal and State Constitutions, as well as that developed by the common law. 341 U. S., at 372-375. See generally *Doe v. McMillan*, 412 U. S. 306 (1973).

¹⁶ *Fanale v. Sheehy*, 385 F. 2d 866, 868 (CA2 1967); *Bauers v. Heisel*, 361 F. 2d 581 (CA3 1966), cert. denied, 386 U. S. 1021 (1967); *Carmack v. Gibson*, 363 F. 2d 862, 864 (CA5 1966); *Tyler v. Witkowski*, 511 F. 2d 449, 450-451 (CA7 1975); *Barnes v. Dorsey*, 480 F. 2d 1057, 1060 (CA8 1973); *Kostal v. Stoner*, 292 F. 2d 492, 493 (CA10 1961), cert. denied, 369 U. S. 868 (1962); cf. *Guerro v. Mulhearn*, 498 F. 2d 1249, 1255-1256 (CA1 1974); *Weathers v. Ebert*, 505 F. 2d 514, 515-516 (CA4 1974). But compare *Hurlburt v. Graham*, 323 F. 2d 723 (CA6 1963), with *Hilliard v. Williams*, 465 F. 2d 1212 (CA6), cert. denied, 409 U. S. 1029 (1972). See Part IV, *infra*.

¹⁷ E. g., *Tyler v. Witkowski, supra*, at 450; *Kostal v. Stoner, supra*, at 493; *Hampton v. City of Chicago*, 484 F. 2d 602, 608 (CA7 1973), cert. denied, 415 U. S. 917 (1974). See n. 20, *infra*.